

1 ENGROSSED SENATE
2 BILL NO. 1146

By: Hall and Haste of the
Senate

3 and

4 Caldwell (Trey), Kane,
5 Turner, Blancett, Fugate,
6 and Hefner of the House

7
8 An Act relating to the Oklahoma Police Pension and
9 Retirement System; authorizing benefit increase for
10 certain retired members of the Oklahoma Police
11 Pension and Retirement System; amending 62 O.S. 2021,
12 Section 3103, as last amended by Section 2, Chapter
13 361, O.S.L. 2024 (62 O.S. Supp. 2025, Section 3103),
14 which relates to the Oklahoma Pension Legislation
15 Actuarial Analysis Act; modifying certain definition;
16 updating statutory language; providing for
17 codification; and providing effective dates.

18
19
20 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

21 SECTION 1. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 50-136.10 of Title 11, unless
23 there is created a duplication in numbering, reads as follows:

24 Any person receiving benefits from the Oklahoma Police Pension
and Retirement System as of June 30, 2026, who continues to receive
benefits on or after the effective date of this section, shall
receive an increase in benefits as follows:

1. Zero percent (0%) if the person has been retired for less
than ten (10) years as of June 30, 2026;

2. Three percent (3%) if the person has been retired for at least ten (10) years but less than twenty (20) years as of June 30, 2026; and

3. Six percent (6%) if the person has been retired for twenty (20) years or more as of June 30, 2026.

SECTION 2. AMENDATORY 62 O.S. 2021, Section 3103, as last amended by Section 2, Chapter 361, O.S.L. 2024 (62 O.S. Supp. 2025, Section 3103), is amended to read as follows:

Section 3103. As used in the Oklahoma Pension Legislation Actuarial Analysis Act:

1. "Amendment" means any amendment, including a substitute bill, made to a retirement bill by any committee of the House of Representatives or Senate, any conference committee of the House or Senate or by the House or Senate;

2. "RB number" means that number preceded by the letters "RB" assigned to a retirement bill by the respective staffs of the ~~Oklahoma State~~ Senate and the ~~Oklahoma~~ House of Representatives when the respective staff office prepares a retirement bill for a member of the Legislature;

3. "Legislative Actuary" means the firm or entity that enters into a contract with the Legislative Service Bureau pursuant to Section 452.15 of Title 74 of the Oklahoma Statutes to provide the actuarial services and other duties provided for in the Oklahoma Pension Legislation Actuarial Analysis Act;

1 4. "Nonfiscal amendment" means an amendment to a retirement
2 bill having a fiscal impact, which amendment does not change any
3 factor of an actuarial investigation specified in subsection A of
4 Section 3109 of this title;

5 5. "Nonfiscal retirement bill" means a retirement bill:

6 a. which does not affect the cost or funding factors of a
7 retirement system,

8 b. which affects such factors only in a manner which does
9 not:

10 (1) grant a benefit increase under the retirement
11 system affected by the bill,

12 (2) create an actuarial accrued liability for or
13 increase the actuarial accrued liability of the
14 retirement system affected by the bill, or

15 (3) increase the normal cost of the retirement system
16 affected by the bill,

17 c. which authorizes the purchase by an active member of
18 the retirement system, at the actuarial cost for the
19 purchase as computed pursuant to the statute in effect
20 on the effective date of the measure allowing such
21 purchase, of years of service for purposes of reaching
22 a normal retirement date in the applicable retirement
23 system, but which cannot be used in order to compute
24

- 1 the number of years of service for purposes of
2 computing the retirement benefit for the member,
- 3 d. which provides for the computation of a service-
4 connected disability retirement benefit for members of
5 the Oklahoma Law Enforcement Retirement System
6 pursuant to Section 2-305 of Title 47 of the Oklahoma
7 Statutes if the members were unable to complete twenty
8 (20) years of service as a result of the disability,
- 9 e. which requires membership in the defined benefit plan
10 authorized by Section 901 et seq. of Title 74 of the
11 Oklahoma Statutes for persons whose first elected or
12 appointed service occurs on or after November 1, 2018,
13 if such persons had any prior service in the Oklahoma
14 Public Employees Retirement System prior to November
15 1, 2015,
- 16 f. which provides for a one-time increase in retirement
17 benefits if the increase in retirement benefits is not
18 a permanent increase in the gross annual retirement
19 benefit payable to a member or beneficiary, occurs
20 only once pursuant to a single statutory authorization
21 and does not exceed:
- 22 (1) the lesser of two percent (2%) of the gross
23 annual retirement benefit of the member or One
24 Thousand Dollars (\$1,000.00) and requires that

1 the benefit may only be provided if the funded
2 ratio of the affected retirement system would not
3 be less than sixty percent (60%) but not greater
4 than eighty percent (80%) after the benefit
5 increase is paid,

6 (2) the lesser of two percent (2%) of the gross
7 annual retirement benefit of the member or One
8 Thousand Two Hundred Dollars (\$1,200.00) and
9 requires that the benefit may only be provided if
10 the funded ratio of the affected retirement
11 system would be greater than eighty percent (80%)
12 but not greater than one hundred percent (100%)
13 after the benefit increase is paid,

14 (3) the lesser of two percent (2%) of the gross
15 annual retirement benefit of the member or One
16 Thousand Four Hundred Dollars (\$1,400.00) and
17 requires that the benefit may only be provided if
18 the funded ratio of the affected retirement
19 system would be greater than one hundred percent
20 (100%) after the benefit increase is paid, or

21 (4) the greater of two percent (2%) of the gross
22 annual retirement benefit of the volunteer
23 firefighter or One Hundred Dollars (\$100.00) for
24 persons who retired from the Oklahoma

1 Firefighters Pension and Retirement System as
2 volunteer firefighters and who did not retire
3 from the Oklahoma Firefighters Pension and
4 Retirement System as a paid firefighter.

5 As used in this subparagraph, "funded ratio" means the
6 figure derived by dividing the actuarial value of
7 assets of the applicable retirement system by the
8 actuarial accrued liability of the applicable
9 retirement system,

10 g. which modifies the disability pension standard for
11 police officers who are members of the Oklahoma Police
12 Pension and Retirement System as provided by Section
13 50-115 of Title 11 of the Oklahoma Statutes,

14 h. which provides a cost-of-living benefit increase
15 pursuant to the provisions of:

16 (1) Section 49-143.7 of Title 11 of the Oklahoma
17 Statutes,

18 (2) Section 50-136.9 of Title 11 of the Oklahoma
19 Statutes,

20 (3) Section 1 of this act,

21 (4) Section 1104K of Title 20 of the Oklahoma
22 Statutes,

23 ~~+(4)~~ (5) Section 2-305.12 of Title 47 of the Oklahoma
24 Statutes,

1 ~~(5)~~ (6) Section 17-116.22 of Title 70 of the Oklahoma
2 Statutes,

3 ~~(6)~~ (7) Section 930.11 of Title 74 of the Oklahoma
4 Statutes,

5 i. which modifies the computation of the line-of-duty
6 disability benefit pursuant to the provisions of this
7 section and Sections 50-101 and 50-115 of Title 11 of
8 the Oklahoma Statutes, or

9 j. which authorizes membership in the Oklahoma Law
10 Enforcement Retirement System for active commissioned
11 or CLEET-certified agents of the Office of the
12 Attorney General or the Military Department of the
13 State of Oklahoma pursuant to Sections 3 and 4 of this
14 act.

15 A nonfiscal retirement bill shall include any retirement bill that
16 has as its sole purpose the appropriation or distribution or
17 redistribution of monies in some manner to a retirement system for
18 purposes of reducing the unfunded liability of such system or the
19 earmarking of a portion of the revenue from a tax to a retirement
20 system or increasing the percentage of the revenue earmarked from a
21 tax to a retirement system;

22 6. "Reduction-in-cost amendment" means an amendment to a
23 retirement bill having a fiscal impact which reduces the cost of the
24

1 bill as such cost is determined by the actuarial investigation for
2 the bill prepared pursuant to Section 3109 of this title;

3 7. "Retirement bill" means any bill or joint resolution
4 introduced or any bill or joint resolution amended by a member of
5 the Legislature which creates or amends any law directly affecting a
6 retirement system. A retirement bill shall not mean a bill or
7 resolution that impacts the revenue of any state tax in which a
8 portion of the revenue generated from such tax is earmarked for the
9 benefit of a retirement system;

10 8. "Retirement bill having a fiscal impact" means any
11 retirement bill creating or establishing a retirement system and any
12 other retirement bill other than a nonfiscal retirement bill; and

13 9. "Retirement system" means the Teachers' Retirement System of
14 Oklahoma, the Oklahoma Public Employees Retirement System, the
15 Uniform Retirement System for Justices and Judges, the Oklahoma
16 Firefighters Pension and Retirement System, the Oklahoma Police
17 Pension and Retirement System, the Oklahoma Law Enforcement
18 Retirement System, or a retirement system established after January
19 1, 2006.

20 SECTION 3. Section 2 of this act shall become effective October
21 1, 2026.

22 SECTION 4. Section 1 of this act shall become effective
23 November 1, 2026.
24

1 Passed the Senate the 14th day of April, 2026.

2
3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

7
8 _____
9 Presiding Officer of the House
10 of Representatives